

**PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR AUGUST 14, 2026 AT 8:30 A.M.**

20. S-CV-0056119 ISMAIL, SELAM v. JANG DDS INC

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 18, 2026 AT 2:30 P.M. in DEPARTMENT 1.

Defendant's Amended Demurrer to the First Amended Complaint (FAC)

The demurrer is sustained with leave to amend.

In the current request, the defendant demurs to all six causes of action alleged in the first amended complaint (FAC). A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) The court has carefully reviewed all six causes of action, providing the most liberal construction to the pleading. The allegations within each of the six claims fail to allege sufficient facts to support any of the causes of action. For these reasons, the demurrer is sustained in its entirety.

The second amended complaint shall be filed and served by August 22, 2026.

Defendant's Amended Motion to Strike Portions of the First Amended Complaint (FAC)

The motion is sustained with leave to amend. A review of the challenged allegations within the FAC show that plaintiff fails to allege sufficient facts to support the request for punitive damages.

The second amended complaint shall be filed and served by August 22, 2026.

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